

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,
RESPONDENTS.

**RESPONDENTS OMNI LOGISTICS LLC'S AND EPIC
FREIGHT SOLUTIONS LLC'S REPLY IN SUPPORT OF PARTIAL
MOTION TO DISMISS FIRST AMENDED VERIFIED COMPLAINT FOR
FAILURE TO STATE A CLAIM UPON WHICH RELIEF CAN BE GRANTED**

I. INTRODUCTION.

A claim for an alleged violation of 46 U.S.C. §§ 41104(a)(14), 41104(a)(15), and 41104(d), with respect to an invoice issued after the effective date of OSRA¹, is foreclosed as a matter of law. This issue has already been decided. Indeed, Complainant does not dispute that Chief Administrative Law Judge Wirth has already determined that OSRA “does not apply retroactively.” (Complainant’s Response to Respondents’ Partial Motion to Dismiss (“Response”), 1.) Yet Complainant characterizes Respondents’ Partial Motion to Dismiss as being somehow improper. To the contrary, it is Complainant who, *despite* Chief Administrative Law Judge Wirth’s determination, and in the face of clear and binding law foreclosing its claims, chose to reassert its allegations that invoices issued *after* OSRA’s effective date violate 46 U.S.C.

¹ Capitalized terms used herein but not defined have the same meaning ascribed to them Respondents’ Partial Motion to Dismiss.

§§ 41104(a)(14), 41104(a)(15), and 41104(d). Respondents’ Partial Motion to Dismiss merely seeks dismissal of Count II and Count III of the Amended Complaint “*to the extent* those counts relate to invoices issued *after* June 16, 2022[.]” (Motion, p. 1.) Nothing about this is improper. Accordingly, the Presiding Officer should grant Respondents’ Partial Motion to Dismiss and state as much.

II. RESPONDENTS’ MOTION IS NOT PREMATURE.

Complainant suggests that because Chief Administrative Law Judge Wirth explained that “the conduct identified by OSRA may be relevant to determining the reasonableness of rules and practice” (Response, 2), Respondents’ motion to dismiss “is premature.” Complainant is wrong. Chief Administrative Law Judge Wirth was clearly alluding to 46 U.S.C. § 41102(c), which governs the reasonableness of rules and practice, and is the subject of Count I of Complainant’s Amended Complaint. In other words, OSRA may be relevant to determining the merit – or lack thereof – of Count I of Complainant’s Amended Complaint. Here, Respondents seek partial dismissal of Counts II and III.

No amount of discovery can change the fact that Complainant’s claims in Counts II and III of its Amended Complaint, with respect to invoices issued *after* June 16, 2022, are foreclosed as a matter of law. Respondents’ Partial Motion to Dismiss presents a purely legal issue into which no discovery is required. Therefore, dismissal is appropriate now.

III. COMPLAINANT DOES NOT DISPUTE THAT 232 OUT OF 245 INVOICES IDENTIFIED IN THE AMENDED COMPLAINT’S EXHIBIT C WERE ISSUED AFTER JUNE 16, 2022.

Notably absent from Complainant’s Response is any attempt to dispute the Respondents’ showing that “a mere 13 invoices of the 245 invoices identified in the Amended Complaint’s Exhibit C, were issued *after* June 16, 2022, the effective date of OSRA-22.” (Motion, p. 5 (citing

Ikemoto Dec., ¶ 14; Exhibit 2 to Ikemoto Dec.)). Complainant does not dispute this because it cannot. Thus, Counts II and III must be dismissed with respect to the 232 invoices, identified in the Amended Complaint's Exhibit C, that were plainly issued after OSRA's effective date.

Complainant relies on its contention that invoices not identified in its Amended Complaint serve as the basis for Counts II and III of the Amended Complaint. (Response, 2.) The Presiding Officer should disregard Complainant's claims with respect to invoices that were not identified in the Amended Complaint. *See, e.g. Schneider v. Cal. Dep't of Corr.*, 151 F.3d 1194, 1197 n.1 (9th Cir. 1998) ("The 'new' allegations contained in the . . . opposition . . . are irrelevant for Rule 12(b)(6) purposes."). Regardless, Complainant's new assertion about additional invoices not alleged in its Amended Complaint still does not change the scope of the relief Respondents request in their Motion to Dismiss – that Counts II and III be dismissed to the extent that they allege violations of 46 U.S.C. §§ 41104(a)(14), 41104(a)(15), and 41104(d) based on invoices issued after OSRA's effective date.

IV. CONCLUSION.

Because the Presiding Officer has already decided the issue of whether OSRA applies retroactively, the Presiding Officer must grant Respondents' Partial Motion to Dismiss. Complainant does not, and cannot, present any argument to the contrary. The Presiding Officer should therefore dismiss Counts II and III of Complainant's Amended Complaint with respect to the vast majority of invoices that were issued to Complainant after the effective date of OSRA.

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

By: /s/ Marc S. Blubaugh

MARC S. BLUBAUGH (Ohio Bar No.
0068221)

mblubaugh@beneschlaw.com

NICHOLAS P. LACEY (Ohio Bar No.
0100042)

nlacey@beneschlaw.com

41 S. High Street. Suite 2600

Columbus, OH 43215

Telephone: (614) 223-9300

Facsimile: (614) 223-9330

*Counsel for Respondents Omni Logistics LLC
and Epic Freight Solutions LLC*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 14th day of April, 2023, a true and correct copy of the foregoing was served via electronic mail on:

Tiffany N. Compres, Esq. (tiffany.compres@fisherbroyles.com)
Gene M. Burd (gene.burd@fisherbroyles.com)

Counsel for Complainant TPG Pressure, Inc.

/s/ Marc S. Blubaugh

Marc S. Blubaugh